

Line 1

Case Name: *Onpath Federal Credit Union v. Emily Begines, et al.*

Case No.: 24CV451783

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Onpath Federal Credit Union (“Plaintiff”) moves for judgment on the pleadings in favor of Plaintiff and against Defendant Emily Begines (“Defendant”) on the grounds that Defendant’s answer fails to state facts sufficient to constitute a defense and based on the Order Deeming Plaintiff’s Requests for Admissions Admitted entered on October 24, 2025. Notice of Motion (the “Motion”) at 1:22-27 (filed: Jan. 14, 2026).

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Chronology & Admissions by Defendant

On November 15, 2024, Plaintiff filed a Complaint with a First Cause of Action for Breach of Contract against Defendant for damages: (1) in the amount of \$41,286.96, *plus* (2) suits of cost herein.¹ Complaint at ¶¶ 1-28 & Prayer for Relief t ¶¶ 1-2 (filed Nov. 15, 2024).

On December 19, 2024 Defendant filed an Answer on December 19, 2024, generally denying each statement of the Complaint. Answer (filed Dec. 19, 2024).

On January 28, 2025, Plaintiff served on Defendant Plaintiff’s Requests for Admission, Set One (“RFAs”).

On May 15, 2025, because Plaintiff failed to respond to those RFAs, Defendant moved for an Order Deeming RFAs admitted by Plaintiff.

On October 24, 2025, after giving all parties a full and fair opportunity to be heard, the Court Granted Plaintiff’s Motion to Deem RFAs admitted by Plaintiff. *See* Order at 2:3-4 (filed: Oct. 24, 2025) (“considering Begines’ s failure to respond to the RFAs and to this Motion,” the Court Orders that “RFAs No. 1-12 are DEEMED ADMITTED BY DEFENDANT.”)

¹ As established by Plaintiff’s Memorandum of Points & Authorities in support of the Motion, Plaintiff’s costs of suit sought here are \$746.84, an amount that the Court in the exercise of its discretion finds to be reasonable in all respects.

On January 14, 2026, Plaintiff filed this Motion for Judgment on the Pleadings in favor of Plaintiff and against Defendant on the grounds that Defendant's Answer fails to state facts sufficient to constitute a defense *and* based on the Order Deeming Plaintiff's Requests for Admissions Admitted entered on October 24, 2025. Motion at 1:22-27.

Plaintiff's Request for Judicial Notice is Granted

In support of this Motion, Plaintiff requests under Sections 452 and 453 of the California Evidence Code that the Court take judicial notice of: (1) Plaintiff's RFAs served on Defendant on January 28, 2025, and (2) the Court's Order of October 24, 2025 Deeming the RFAs admitted by Defendant. As it is proper for the Court under Sections 452 and 453 to take judicial notice of the record of this case, including the Court's Order of October 24, 2025 Deeming the RFAs admitted by Defendant, and as these documents are quite relevant to the present Motion for reasons that the Court will explain below, Plaintiff's Request for Judicial Notice of both these documents is **GRANTED**.

Legal Standards for C.C.P. Section 438 Motion

Code of Civil Procedure Section 438 governs a Motion for Judgment on the Pleadings.

Section 438(a) authorizes Plaintiff to bring this Motion for Judgment on the Pleadings where, as here, "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint."

And Section 438(d) provides that "[t]he grounds for motion provided for in this section shall appear on the face of the challenged pleading *or* from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities[.]" C.C.P. § 438(d) (emphasis added).

Analysis of this Section 438 Motion

Having reviewed the Complaint, the Court finds that it *does* state facts sufficient to constitute a cause of action for breach of contract by Plaintiff against Defendant including the damages sought.

Satisfying the requirement of C.C.P. Section 438(d), Plaintiff's Motion in both its Notice of Motion and in its supporting Memorandum of Points & Authorities does specify the matters which it requests the Court to take Judicial Notice on which this Motion is based, namely, (1) Plaintiff's RFAs to Defendant, and (2) the Court's October 24, 2025 Order Deeming those RFAs admitted by Defendant. Notice of Motion at 2:1-3; Memo. of Points & Authorities at 2:1-5:12. And for the reasons explained above, the Court here takes Judicial Notice of both those documents.

By force of the Court's October 24, 2025 Order, the Court finds that Defendant has admitted, *inter alia*, all the following specified facts:

- RFA No. 4: Defendant entered into the Loan Agreement with Plaintiff;
- RFA No. 5: Funds were deposited into bank account ending 1009 at Chae Bank pursuant to your Loan request to Plaintiff;
- RFA No. 6: Defendant is the account holder of bank account ending in 1009 at Chase Bank;
- RFA No. 9: All payments that Defendant submitted have been credited on the Subject Loan;
- RFA No. 10: Defendant is in default on the Subject Loan because Defendant failed to pay Plaintiff pursuant to the terms of the Loan Agreement;
- RFA No. 11.: Plaintiff performed all conditions required of it under the Loan Agreement; *and*
- RFA No. 12: The principal amount due of \$41,286.96 as set forth in the Complaint filed in this matter is correct.

Those admissions by Defendant to those RFAs are dispositive here because under Code of Civil Procedure 2033.410(a): "Any matter admitted in response to a request for admission is *conclusively established* against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300." C.C.P. § 2033.410(a). And here, the Court has not permitted withdrawal or amendment of those admissions.

Hence, Defendant's admissions to the RFAs above conclusively establish that Defendant is liable for Plaintiff's Breach of Cause of action as pleaded in Plaintiff's Complaint because Defendant is deemed to have admitted each and every fact constituting each and every element of that Breach of Contract Cause of Action, including specifically that Defendant owes the principal amount of \$41,286.96 now.

As this Court has not and does not give leave to Defendant to amend or withdraw these admissions to these RFAs, "no contradictory evidence may be introduced." *Murillo v. Sup. Ct.* (2006) 143 Cal. App. 4th 730, 736. As no contradictory evidence may be introduced by Defendant, there is no reasonable possibility that the defect in Defendant's case could be cured by amendment of its Answer. And as there is no reasonable possibility that the defect could be cured by amendment, the Court, in the broad exercise of its discretion, may and hereby does **GRANT** this Motion for Judgment on the pleadings **WITHOUT LEAVE TO AMEND**. *Smiley v. Citibank* (1995) 11 Cal. 4th 138, 164 n. 18.

Defendant does not argue otherwise. Indeed, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Moreover, in light of this Order Granting Plaintiff’s Motion without leave to amend, Plaintiff is entitled to Judgment *now* in the amount of damages sought in the Complaint of \$41,286.96 on the principal debt, plus costs of suit in the amount of \$746.84. C.C.P. § 438(h)(3). So the total amount that Plaintiff is entitled to now is \$42,033.80.

Accordingly, **JUDGMENT IS ENTERED** now in favor of Plaintiff and against Defendant for the total amount of \$42,033.80.

Conclusion & Order

For the reasons set forth above, Plaintiff’s Motion for Judgment on the pleadings in the total amount of **\$42,033.80** in favor of Plaintiff Onpath Federal Credit Union and against Defendant Emily Begines is **GRANTED WITHOUT LEAVE TO AMEND**.

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Judgment

Plaintiff's Motion for Judgment on the Pleadings in favor of Plaintiff Onpath Federal Credit Union and against Defendant Emily Begines came regularly for a hearing by the Court on August 28, 2026, on notice duly given. After reviewing all the papers and giving counsel for all parties the opportunity to be heard, the Court **GRANTS THE MOTION WITHOUT LEAVE TO AMEND.**

ACCORDINGLY, IT IS SO ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiff Onpath Federal Credit Union have and recover now from Defendant Emily Begines a **Total Judgment in the amount of \$42,033.80**, which equals damages of \$41,286.96 plus costs of suit of \$746.84.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)